Unified Patent Court
Einheitliches Patentgericht
Juridiction unifiée du brevet

UPC_CFI_523/2025 (Revocation action)
UPC_CFI_3387/2026 (Costs)
UPC_CFI_3462/2026 (Costs)
Central Division (Section Munich)

Decision in cost proceedings

of the Court of First Instance of the Unified Patent Court
Central Division (Section Munich)
issued on 11 November 2026

HEADNOTE:

The UPC system of adjustable, value-based ceilings for representation costs safeguards that the costs which may be imposed on the unsuccessful party are reasonable and proportionate whilst, at the same time, ensuring that the maximum amounts that may be recovered are not too low for the successful party.

KEYWORDS:

Art. 69 UPCA. R. 152.2 RoP. Applicable ceiling for recoverable costs. Absolute cap. Representation costs. Other expenses.

CLAIMANT

Wittenstein SE, Walter-Wittenstein-Straße 1, D-97999 Igersheim, Germany

represented by: Dr. Simon Klopschinski, rospatt Rechtsanwälte PartGmbB

DEFENDANT

Vestas Wind Systems A/S, Hedeager 42, DK-8200 Aarhus N, Denmark

represented by: Sebastian Ochs and Martin Hackler, Grünecker Patent- und Rechtsanwälte PartGmbB

Both parties made applications for a cost decision and will be indicated in this decision by reference to their roles in the revocation action of “Claimant” and “Defendant” as above.

PATENT AT ISSUE

EP 4 226 039.

PANEL/DIVISION

Panel 1 of the Central Division (Section Munich).

DECIDING JUDGES

This decision has been delivered by András Kupecz as judge-rapporteur.

LANGUAGE OF THE PROCEEDINGS

English.

SUBJECT MATTER OF THE PROCEEDINGS

Cost proceedings.

SUMMARY OF THE FACTS

1. The Claimant brought a revocation action against the Defendant in the Central Division (Section Munich) ("CD Munich") of the Unified Patent Court ("UPC") in relation to the European Patent with unitary effect EP 4 226 039 B1 ("the Patent").

2. By decision dated 2 September 2026, the CD Munich revoked the Patent in part and maintained the Patent in amended form (the "Decision"). In the Decision, the Claimant was ordered to bear 90% of the Defendant's costs and the Defendant was ordered to bear 10% of the Claimant's costs. The Decision has not been appealed.

3. The value of the case was set at EUR 500.000,00. In the Decision, the Court held that based on the table of maximum amounts for recoverable costs, the ceiling is EUR 56.000,00. The Court also confirmed that the parties had agreed not to dispute each other's representation costs up to that ceiling.

4. On 22 September 2026, the Claimant lodged an application for a cost decision (case number UPC_CFI_3387/2026). On 28 September 2026, the Defendant lodged an application for a cost decision (case number UPC_CFI_3462/2026). For conciseness, this decision deals with both applications.

POINTS IN DISPUTE AND REQUESTS OF THE PARTIES

In case UPC_CFI_3387/2026

5. The Claimant requests:

- the reimbursement of costs for the legal representation in the amount of EUR 5.600,00.

- the reimbursement of court fees in the amount of EUR 2.000,00.

The Defendant requested a decision based on the case record.

6. The Claimant argues in support of its cost application that EUR 5.600,00 is 10% of EUR 56.000,00 which has to be reimbursed by the Defendant. The amount requested does not exceed the limit based on the ceiling of recoverable costs (EUR 56.000,00) and the parties agreed not to dispute each other's representation costs up to that ceiling. The court fees requested are EUR 2.000,00 (10% of EUR 20.000,00).

7. The Defendant did not bring forward any further facts or arguments.

In case UPC_CFI_3462/2026

8. The Defendant requests:

I. The Claimant is ordered to pay to the Defendant

1. its legal costs in the amount of EUR 212.573,34;
2. in the alternative: its legal costs in the amount of EUR 56.073,00;

II. The Claimant is set a period of two weeks to pay the specified amount to the Defendant.

9. In support of its application, the Defendant argued that its costs for legal representation in the present revocation proceedings in first instance amount to a total of EUR 236.192,61. According to the Defendant, the costs are reasonable and proportionate. Should the Court not consider the actually incurred legal costs reimbursable, in any case legal costs are reimbursable up to the ceiling, i.e. EUR 56.000,00. Further expenses add to this amount. The Defendant's actual legal representation costs and the reimbursable share of 90 % exceed the applicable ceiling (EUR 56.000,00). The Claimant was ordered to bear 90% of the Defendant's legal costs. Therefore, according to the Defendant, in any event, it is entitled to compensation in an amount up to the applicable ceiling of costs, i.e. EUR 56.000,00. The Defendant argues that necessary costs (incurred by the party's legal representative) for travel and accommodation are "other expenses" and on this basis seeks reimbursement of these costs for attending the oral hearing (a taxi ride costing EUR 23,61) as well as the costs of obtaining a copy of an essay referred to by the Claimant as part of its entitlement allegation (EUR 57,50).

10. The Claimant disputes, on the grounds of lack of knowledge, that the Defendant actually incurred legal costs in this amount. Furthermore, according to the scale of ceilings for recoverable costs the upper limit of the recoverable costs is EUR 56.000,00. In the present proceedings there is no reason to increase the limit, since the proceedings were neither

particularly complex nor the case was handled in various languages. There was also no witness examination, and no expert was called in. In addition, the Defendant did not request an increase of the upper limit of the recoverable costs. A specific calculation of the amount to be reimbursed at a later date that exceeds the upper limit does not constitute a request to raise the upper limit. Moreover, in its Preliminary Estimate of the Legal Costs, the Defendant stated that it will seek to recover only the amount of EUR 56.000,00. The Claimant would therefore have to pay a total amount of EUR 50.400,00 to the Defendant (90% of EUR 56.000,00).

11. After having been given an opportunity to comment on the Claimant's submission, the Defendant offered to submit further written evidence of the representation costs by invoices and noted that the preliminary cost estimate was only preliminary and not binding. The Defendant further requested a decision based on the case record.

GROUNDS FOR THE DECISION

12. Both cost applications are admissible. They were lodged within one month of service of the Decision in accordance with R. 151 of the Rules of Procedure ("RoP"). No other concerns as to admissibility have been raised or are apparent.

13. The Claimant's application is well-founded, whereas the Defendant's application is well-founded only in part.

Principles

14. In accordance with Art. 69(1) and (2) of the Agreement on a Unified Patent Court ("UPCA"), reasonable and proportionate legal costs and other expenses incurred by the successful party shall, as a general rule, be borne by the unsuccessful party, unless equity requires otherwise, up to a ceiling set in accordance with the RoP (see R. 152.2 RoP). Where a party succeeds only in part or in exceptional circumstances, the Court may order that costs be apportioned equitably or that the parties bear their own costs. Art. 69 UPCA implements Article 14 of Directive 2004/48/EC of 29 April 2004 on the enforcement of intellectual property rights ("Enforcement Directive", also see CoA decision of 5 November 2026, UPC_CoA_49/2026, *Guardant/Sophia*, section "A").

15. Based on R. 152.2 RoP, the Administrative Committee adopted a decision on the scale of recoverable cost ceilings (D - AC/10/24042023_E, dated 24 April 2023, "Ceilings Decision"). In the Ceilings Decision, the ceiling for the recoverable representation costs is referred to as being only one of the safeguards against undue cost recovery. The ceilings are to be regarded as an absolute cap on recoverable representation costs applicable in every case (Preamble (1), second and last sentence of the Ceilings Decision, also see CoA order of 3 November 2026, UPC_CoA_84/2026, *Yealink/Barco*, para. 37, and the CoA in *Guardant/Sophia* cited above, para. 37). The ceiling for recoverable costs in a particular case depends on the value of the proceedings (see Annex to the Ceilings Decision). In case of partial success, the

applicable ceiling shall correspond to the proportion of success of the party seeking cost recovery (Art. 1(4) Ceilings Decision).

16. Article 2 of the Ceilings Decision gives the Court the discretion to raise the ceiling in limited situations, such as the particular complexity of the case or multiple languages used in the proceedings, having regard to the financial capability of all the parties in the light of the principle of fair access to justice. The Court may also lower the ceiling. A request to raise or lower the ceiling shall be made as soon as possible and practicable in the proceedings. It shall be lodged in sufficient time to enable the Court to make a decision before closure of the interim procedure. The request shall include all reasonably available evidence (see Art. 2(4) and (5) of the Ceilings Decision).

17. Taken together, these provisions give effect to the general rule that reasonable and proportionate legal costs and other expenses incurred by the successful party are to be borne by the unsuccessful party. The UPC system of adjustable, value-based ceilings for representation costs safeguards that the costs which may be imposed on the unsuccessful party are reasonable and proportionate whilst, at the same time, ensuring that the maximum amounts that may be recovered are not too low for the successful party (cf. CJEU, judgment of 28 July 2016, C-57/15, ECLI:EU:C:2016:611, *United Video Properties*, CJEU, judgment of 28 April 2022, C-531/20 ECLI:EU:C:2022:316, *NovaText GmbH v Ruprecht-Karls-Universität Heidelberg*, CJEU, judgment of 28 April 2022, C-559/20, ECLI:EU:C:2022:317, *Koch Media GmbH v FU*, LD Brussels, cost decision dated 25 July 2025, UPC_CFI_131/2025, *Orthoapnea/X,* para. 27).

The Claimant's request for a cost decision (UPC_CFI_3387/2026)

18. Against the background of the above principles, the Claimant's request for reimbursement is well founded. The Defendant has not objected to the requested amounts of EUR 5.600,00 and EUR 2.000,00 (totalling EUR 7.600,00). As regards representation costs, EUR 5.600,00 corresponds to 10% of the ceiling of EUR 56.000,00 which correctly reflects the Claimant's proportion of success. In accordance with the agreement between the parties (see para. 177 of the Decision), it is undisputed that the Claimant incurred these costs and that they are reasonable and proportionate. Since the amount does not exceed the applicable ceiling, the Court sees no reason to find differently. EUR 2.000,00 equals 10% of the court fee of EUR 20.000,00, i.e. the fixed fee for a revocation action as applicable at the time and is reimbursable as requested. In conclusion, the Claimant is entitled to reimbursement of EUR 7.600,00 in total.

The Defendant's request for a cost decision (UPC_CFI_3462/2026)

19. The reimbursement requested by the Defendant of EUR 212.573,34, alternatively EUR 56.073,00, shall not be granted because the amounts exceed the applicable ceiling of recoverable representation costs.

20. The Defendant has not made a request to raise the ceiling at any stage of the proceedings. A request for reimbursement of an amount exceeding the ceiling is generally not to be interpreted as a request to raise the ceiling. Such a request must be specific and must be made clearly and explicitly (cf. LD Munich, cost decision dated 6 August 2026, UPC_CFI_1569/2025, *Niche Biomedical/Onward*, more generally CoA 3 November 2026, UPC_CoA_84/2026, *Yealink/Barco*, para. 15).

21. Even if it were assumed that a request to raise the ceiling was made as part of the Defendant's cost application, it would be inadmissible because it was filed late. A request to raise the ceiling shall be made as soon as possible and practicable in the proceedings, and at the latest before closure of the interim procedure (Art. 2(4) Ceilings Decision, also see principles above). Making such a request only at the stage of the cost proceedings is in any event too late.

22. This means that the ceiling based on the value of the case is EUR 56.000,00 (see para. 177 of the Decision). As the Defendant was partially successful (to 90%), the corresponding applicable ceiling for recoverable costs for the Defendant is EUR 50.400,00. In accordance with the principles set out above, this amount is to be regarded as an absolute cap on the recoverable representation costs.

23. Following the agreement between the parties (see para. 177 of the Decision), the Claimant has not disputed that representation costs up to the amount of the applicable ceiling, i.e. EUR 50.400,00 (see above), were incurred or that these are reasonable and proportionate. Since this amount does not exceed the applicable ceiling for recoverable costs, the Court sees no reason not to award it.

24. The costs of a taxi ride incurred by the legal representatives in attending the oral hearing are so closely connected to the representation of the Defendant that, contrary to the view of the Defendant, these must be considered to be part of the overall representation costs and therefore fall within the amount capped by the ceiling for recoverable representation costs (cf. LD Brussels, cost decision dated 25 July 2025, UPC_CFI_131/2025, *Orthoapnea/X,* headnote 6).

25. The costs of obtaining a copy of the essay (EUR 57,50) are to be qualified as "other expenses". These costs are not related to representation but relate to a document that the Claimant relied on for its entitlement case of which the Defendant obtained a copy. These costs therefore fall outside of the ceiling. These costs have not been disputed by the Claimant nor has the Claimant argued that they are unreasonable or disproportionate. Accordingly, they are reimbursable at 90%, i.e. an amount of EUR 51,75.

26. As, in view of the above, the Defendant's representation costs exceeding the ceiling are not reimbursable in any event, it may be left open whether the Claimant has disputed in a

sufficiently substantiated way (based on “lack of knowledge”, cf. CoA 16 September 2026, UPC_CoA_919/2025, *Heraeus/Vibrantz*, also see CoA in *Guardant/Sophia,* cited above, para. 40) that these have been incurred by the Defendant and whether the Defendant should be permitted or required to provide further evidence in the form of invoices as it offered.

27. In conclusion, the Defendant is entitled to reimbursement of EUR 50.400,00 of its costs of representation and EUR 51,75 of other expenses totalling an amount of EUR 50.451,75.

28. The Defendant requested to set a period for payment of two weeks. Taking into account that the Claimant raised no objections to this, the Court considers that period appropriate in both applications and orders that the costs shall be paid within two weeks of service of this decision (R. 156.3 RoP).

29. The parties have not requested reimbursement of the costs incurred in these cost proceedings. This is in accordance with the principle that each party generally bears its own costs in the cost proceedings (UPC Court of Appeal, decision of 6 June 2025, UPC_CoA_618/2024, *Hanshow/VusionGroup*). Accordingly, no decision on this issue is required.

DECISION

I. The Claimant shall reimburse the Defendant an amount of EUR 50.451,75 (in application UPC_CFI_3462/2026).

II. The Defendant shall reimburse the Claimant an amount of EUR 7.600,00 (in application UPC_CFI_3387/2026).

III. The amounts specified in points I and II shall be paid within two weeks of the date of service of this decision.

IV. Any further requests are rejected.

András Kupecz Presiding judge and judge-rapporteur	Digitally signed Kupecz András Ferenc 2026-11-10 16:16:08 +0100 Unified Patent Court Einheitliches Patentgericht Juridiction unifiée du brevet
For the deputy-registrar	Digitally signed Gnaß Natalie 2026-11-10 16:22:46 +0100 Unified Patent Court Einheitliches Patentgericht Juridiction unifiée du brevet

Information about appeal

This decision may be appealed to the Court of Appeal in accordance with R. 221 RoP (see R. 157 RoP).

Information about enforcement

Art. 82 UPCA, Art. 37(2) UPCS, R. 118.8, 158.2, 354 and 355.4 RoP:
An authentic copy of the enforceable decision will be issued by the Deputy-Registrar upon request of the enforcing party (R. 69 of the Rules governing the Registry of the UPC).